

26STCV10836 26STCV10836

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-25

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Case Number: 26STCV10836 Hearing Date: August 25, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 25, 2026

Case Name: Dunning v. Keck Hospital of USC, et al.

Case No.: 26STCV10836

Matter: (1) Motion for Leave to Amend

(2) Demurrer

Ruling: The Motion for Leave to Amend is granted.

The Demurrer is overruled as moot.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Amend

Plaintiff James Dunning, a pro per litigant, seeks leave to file a Second Amended Complaint.

The Court may, in the furtherance of justice, and upon any terms as may be proper, allow a party to amend any pleading. (Code Civ. Proc. §§ 473, 576.) In general, California courts liberally exercise discretion to permit amendment of pleadings in light of a strong policy favoring resolution of all disputes between parties in the same action. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) “[T]here is a strong policy in favor of liberal allowance of amendments.” (*Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296.) Pursuant to this policy, requests for leave to amend generally will be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment before the Court, and the delay in seeking leave to amend will cause prejudice to the opposing party if leave to amend is granted. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490; *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) The decision on a motion for leave is directed to the sound discretion of the trial court. (See generally *Weil & Brown*, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2014) ¶¶ 6:637 et seq.)

Because this action is in its early stages, the Court cannot find sufficient prejudice to preclude an amendment.

Therefore, the Motion is granted. The SAC is to be filed within 10 days.

Demurrer

In light of the ruling on the above motion, the Demurrer of Defendants Pacesetter, Inc. d/b/a Abbott Medical and Abbott Laboratories to the First Amended Complaint is overruled as moot.

Moving party to give notice.